

Court No. - 4

Case :- WRIT - C No. - 9089 of 2018

Petitioner :- Smt. Kamlesh Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vijay Singh Gour

Counsel for Respondent :- C.S.C., Sanjay Mishra

Hon'ble Bala Krishna Narayana, J.

Hon'ble Irshad Ali, J.

Heard Sri Vijay Singh Gour, learned counsel for the petitioner, learned Standing Counsel for the State and Sri Sanjay Mishra, learned counsel for the respondent nos. 2 and 3.

This writ petition has been filed by the petitioner for the following reliefs :-

- 1. Issue a writ, order or direction in the nature of certiorari quashing the recovery citation no. 4822 dated 15.02.2018 issued under Section 5 of Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Act, 1958 by respondent no. 1 for recovering electrical dues amounting to Rs. 59,57,344/- and recovery expenses whatsoever from the petitioner (Annexure No.1).*
- 2. Issue a writ, order or direction in nature of mandamus directing and commanding respondent no.2 to consider petitioner's pending representation/objection dated 08.08.2017 against PD Bill before him (Annexure No.9).*
- 3. Issue a writ, order or direction in nature of mandamus directing respondent not to take coercive measure till disposal of petitioner objection pending before him.*
- 4. Issue any other writ, order or direction which this Hon'ble Court deem fit and proper in facts and circumstances of this case.*
- 5. To award the cost to the petitioner.*

Learned counsel for the petitioner has submitted that the recovery certificate for recovering the electricity dues against the petitioner as arrears of land revenue was issued by respondent no. 1 to the respondent no. 3 without deciding the objection filed by the petitioner challenging the correctness of the bill for a period starting from September, 2013 to July, 2017 (Annexure No. 8) as required by clause 6.15 of U.P. Electricity

Supply Code, 2005. Copy of the objection which was filed by the petitioner by registered post before respondent no.2 on 08.08.2017 has been brought on record as (Annexure No. 9) to the writ petition. Pursuant to the recovery certificate issued by respondent no. 1, the Tehsildar has issued the impugned citation dated 15.02.2018 calling upon the petitioner to pay the amount mentioned in the citation. He next submitted that in view of the above, the recovery citation is liable to be quashed and the writ petition deserves to be allowed.

Per contra Sri Sanjay Mishra, learned counsel for the respondent nos. 2 and 3 has submitted that there is nothing on record indicating that against the impugned bill, the petitioner had filed any objection or that the same was received by the respondents and hence, the impugned recovery citation is not liable to be quashed on the basis of the submissions made by the learned counsel for the petitioner.

Having heard the learned counsel for the parties present and perused the impugned recovery citation as well as the other material brought on record, we are of the view that since clause 6.15 of U.P. Electricity Supply Code, 2005 gives a statutory right to the consumer to file an objection challenging the correctness of the bill, without expressing any opinion on the merits of the case, we dispose of this writ petition with liberty to the petitioner to file a fresh objection against the impugned bill within a period of three weeks from today along with the certified copy of this order. In case any such objection is made by the petitioner before the respondent no. 2, he shall consider and decide the same strictly in accordance with law by a speaking and reasoned order within a further period of two weeks.

For a period of six weeks or till the objection filed by the petitioner against the bill in dispute before the respondent no. 2 is decided, whichever is earlier, the recovery proceedings against the petitioner pursuant to the impugned recovery citation dated 15.02.2018 shall remain in abeyance.

In case the petitioner fails to file an objection within the period indicated hereinabove, the writ petition shall stand dismissed and the petitioner shall not be entitled to any benefit of this order.

Order Date :- 12.3.2018

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